

details of what you want to do with your assets. A couple should make individual wills and not a joint will.

What if you want to leave unequal bequests? Maybe one of the two kids has been more supportive to you in your old age. Will the prodigal child contest your unequal will? Probably. To prevent that, you can include what is called an ‘in terrorem’ clause. This is usually put in a will when a contest of the will is anticipated. This means that if any of the beneficiaries contest the will, they could lose even what has been bequeathed to them.

Next, you need to appoint an executor of the will. Ideally the beneficiary of the will is not the executor. This could be a family friend, your lawyer, your financial planner who ensures that the will is followed in letter and spirit in the asset distribution. You can write a will on a piece of paper, sign it with a date and place, and get two witnesses to sign as well. The witness and the beneficiary should be different people, and the witness and the executor should be younger than you. Do simple things like numbering each page, signing each page and putting down the date clearly.

The toughest talk ever

I remember speaking to an old friend. The conversation veered around to ageing parents, and he confessed to the difficulty in talking to his eighty-year-old father about end-of-life choices, putting his assets in order and writing a will. Over the past decade and a half, he says, he’s been through various stages – indifference (this will sort itself out), denial (my old man won’t cop it so soon), guilt (what am I doing thinking about the death of my own folk?), worry (gosh, the run-around XYZ went through to get basic bank accounts unfrozen, and don’t even talk about the real estate mess), then courage (I’m going to nail this talk next time we meet) and finally to despair (Dad doesn’t want to discuss it!).

It’s not the easiest thing to discuss your ageing parents’ financial affairs and asking them if they have thought about making a will and having a larger plan in mind about the transition into the other world and the care of the spouse who and assets that would be left behind. A chunk of the forty-plus urban mass affluent Indians are watching their parents age – slowly but incrementally.